

ELIZABETH II



1971 CHAPTER lxxii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to the Baird Trust. [16th December 1971]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Baird Trust Order Confirmation Act 1971. Short title.

SCHEDULE

BAIRD TRUST

Provisional Order to confer powers on the Trustees of The Baird Trust with respect to the acceptance of gifts, legacies and transfers of property; to enable the said Trustees to enter into agreements and arrangements with other bodies; to increase the sum payable to the said Trustees in respect of their services; and for other purposes.

Whereas by the Baird Trust Order 1939 (hereinafter referred to as "the Order of 1939") the Trustees appointed and holding office in pursuance of the trust deed granted by the late James Baird on the twenty-fourth day of July one thousand eight hundred and seventy-three were incorporated by the name of "The Baird Trust" and provision was made for the vesting in The Baird Trust of the property and funds of the said Trustees (hereinafter referred to as "the trust fund") and for the regulation and management of The Baird Trust by the Trustees thereby incorporated (hereinafter referred to as "the Trustees"):

And whereas doubts have arisen as to the power of the Trustees to accept gifts, legacies or other transfers of property and it is expedient that such power should be conferred upon them and that they should have power to enter into agreements and arrangements with other bodies carrying on work similar to work being carried on by The Baird Trust:

And whereas it is expedient that the Order of 1939 should be amended as provided in this Order:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short and
collective titles.

- 1.—(1) This Order may be cited as the Baird Trust Order 1971.
- (2) The Baird Trust Orders 1939 and 1957 and this Order may be cited together as the Baird Trust Orders 1939 to 1971.

Interpretation

2. Subject to the provisions of this Order and unless there be something in the subject or context repugnant to such construction, terms, words and expressions to which meanings are assigned by the Baird Trust Order 1939 (hereinafter referred to as "the Order of 1939") shall have the same meanings respectively in this Order.

3.—(1) In addition to the powers conferred upon them by the Baird Trust Orders 1939 and 1957 the Trustees may accept donations, subscriptions, endowments, gifts, legacies and other transfers of sums of money, assets or property of any kind, including the funds and property of any society or body whether incorporated or not. ^{Power to Trustees to accept legacies, etc.}

(2) All sums of money, assets and other property accepted by the Trustees under the foregoing subsection shall form part of the trust fund and shall be administered by the Trustees in accordance with the provisions of the Baird Trust Orders 1939 and 1957:

Provided that nothing in this subsection shall authorise the Trustees to administer any such sums of money or other property in any manner inconsistent with any condition attached to any donation, endowment, gift, legacy or other transfer of property by virtue or in consequence of which the same became vested in the Trustees.

4. The Trustees shall have power to enter into and carry into effect (on such terms and conditions as the Trustees may think fit) any agreement or arrangement for co-operating with or assisting or being assisted by any society or body (whether incorporated or not) carrying on work similar to any work at the time being carried on by the Trust: ^{Power to enter into agreements, arrangements, etc.}

Provided that nothing in this section shall authorise the Trustees to administer the trust fund or any part thereof otherwise than in accordance with the provisions of the Baird Trust Orders 1939 and 1957 and of this Order.

5. Section 22 (Application of revenue of Trust Fund) of the Order of 1939 (as amended by section 6 (Payment of Trustees' expenses) of the Baird Trust Order 1957) which provides, inter alia, for the payment of an annual sum to be divided among the Trustees in respect of their services shall be read and have effect as if, for the words "five hundred pounds" wherever therein occurring, there were substituted the words "one thousand pounds". ^{Payments to Trustees.}

6. The costs, charges and expenses incurred in connection with the preparation, presentation, obtaining and confirming of this Order shall be paid by the Trustees out of the revenue of the trust fund. ^{Costs of Order.}

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